

Facilitator Questionnaire - Activity 8

Break a Construction Variation Impasse

1. Is the impasse about entitlement, valuation, delay, process or face?
2. Which precedents and objective criteria are genuinely comparable?
3. What package could separate undisputed and disputed components?
4. When should the parties pause, escalate, mediate or pursue BATNA?

Challenge questions

1. Which claim is a verified fact, which is a hypothesis, and which still needs evidence?
2. What would cause your target, reservation point or package to change?
3. Which stakeholder, authority limit or implementation risk could invalidate the plan?
4. How will you demonstrate an executable agreement rather than a verbal understanding?